

General EHS Requirements for Contractors

Valid for Organization	All Siemens Energy Units and Affiliated Companies (SGRE included)
Process Category	EHS & Security
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Publication Date ("Valid From")	According to SEPH

Target Group

This Instruction is applicable worldwide, and its implementation is the responsibility of the Business Areas, Global Functions (inc. Project Entity), Regional Hubs and Affiliated Companies.

Management Summary

This document describes the responsibilities of the contractor to ensure that the scope of work, stated in the contract is carried out in a controlled and safe manner and complies with legal and regulatory requirements in the country where the work is being performed, as well as any specific SE EHS requirements for the work activities and work locations including, those stated in this document.

Where SE Project Entity (PE) is responsible for the Project Execution phase and its appointed contractors. PE shall ensure that relevant sections of the "General EHS requirements for Contractor's" are included in the detailed Project EHS plan.

In case of a conflict between SE EHS requirements and any country / local legal or regulatory requirements, then the stricter requirements shall apply.

The General EHS Requirements for Contractors expands the SE legal contract document "Clause on EHS - Procurement "(Doc Ref: LKB22685).

The instruction is linked to Standard 000050 EHS Principles and Core Responsibilities, Standard 000051 EHS Reporting, Investigation and Root cause and Standard 000118 Zero Harm Framework.

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1. Purpose / Introduction

To establish the General Environmental, Health and Safety (EHS) requirements for contractors and their subcontractors or suppliers who perform work for and on behalf of Siemens Energy (SE).

SE is committed to ensuring the health and safety of employees and contractors and the protection of the environment. Our EHS Policies and Zero Harm Framework sets the foundation for our commitment to EHS. Everyone who works for, or on behalf of SE shall be aware of and align with these requirements.

This document constitutes an integral part of the contract or framework agreement with the contractor, establishing the EHS requirements for working at SE locations and sites. This document should be read carefully and understood by the contractor as it is legally binding and an enforceable part of the contract.

2. Abbreviations and Definitions

EHS	Environment, Health, and Safety
PE	Project Entity
SE	Siemens Energy

3. General EHS Requirements

3.1. Regulatory Compliance - EHS Laws and Regulation

The contractor shall comply with all EHS laws and regulations, applicable to the work activities, scope of work and location. It is the contractor's responsibility to identify and understand these requirements and to ensure that all personnel working for, and on behalf of the contractor (*e.g., Subcontractors, suppliers*) fully comply, at all times.

The contractor shall comply with the requirements identified by this document, SE EHS Plans, SE Zero Harm Framework, local Setting to Work documentation and risk assessment. These requirements are intended to supplement laws and regulations that are applicable to the work activities or work location. Where there is conflict between SE EHS requirements and the country / local legal and regulatory requirements, the stricter requirements shall apply.

The contractor shall appoint a competent person as its representative for EHS. The "Contractor EHS Representative" shall ensure the correct implementation of all requirements for the scope of work. SE reserves the right to reject the appointed "Contractor EHS Representative" if it is considered that the individual is not competent or experienced to undertake the EHS responsibilities for the scope of work and the associated work activities.

3.2. Supplier Qualification and Approval

As a prerequisite, the contractor is required to complete the qualification and approval process as defined by SE. The qualification includes the contractor's ability to establish a safe and healthy working environment for its personnel, including proposed sub-contractors and suppliers.

For the activities under the contractor's scope of work, EHS performance will be considered by SE as part of the qualification and approval process (*e.g., continuous evaluations, etc.*). The scope of work for

the contractor shall only be issued upon the successful completion of the qualification and approval process or if authorised in writing, by SE.

The contractor shall inform SE of any changes that are to be made to the scope of supply. *(For example, a change to any of the sub-contractors, removal of or introduction of new sub-contractors not previously identified or, a change of location where the scope of supply will be provided from).* In determining the impact of any change and any resulting risk, SE reserves the right to require the contractor to undertake re-qualification and approval to maintain the “qualified and approved” status.

The contractor shall ensure that SE are made aware of any subcontractors that are to be appointed as part of the contractor's scope of work, ensuring that they are competent, experienced, and qualified to conduct their assigned work activities. The contractor shall ensure that SE is notified of any changes to existing subcontractors and/or the appointment of new subcontractors during the contract lifecycle.

3.3. STOP Work

Unsafe Acts or Conditions which have the potential to harm people and the environment will not be tolerated by SE.

Employees and contractors are empowered to speak up and STOP! any unsafe act or condition at work locations, where there is a potential risk of harm or non-compliance with site rules, customer rules, legal and/or regulatory requirements. Contractors are encouraged to identify any instances where the health and safety of themselves or others may be affected by the work activities and working conditions.

SE reserves the right to “Stop Work “and suspend any work where SE considers that the work activities and/or working conditions are unsafe or that they do not comply with, for example: applicable rules, EHS plans, local regulations, and procedures.

Suspension of the work shall be at the contractor's expense and the suspension will remain in place until the contractor has satisfactorily rectified any such defects and/or unsafe conditions.

Where SE considers that the contractor is not adequately in control of EHS hazards and risks, then SE reserves the right to execute a local “Stop Work “on any of the contractor's work activities (*including subcontractors*) for any duration that SE may deem necessary. During a local “Stop Work “, the contractor will be required to develop and agree an action plan that demonstrates to SE that the hazards and risks have been mitigated, so that work activities can then be safely restarted.

SE expects that everyone working on their behalf to challenge and to accept challenges regarding unsafe work and conditions in a calm and respectful manner.

3.4. SE Zero Harm Framework

The SE Zero Harm Framework promotes a culture where health, safety and our environment are an integral part of our principles and behaviours at all levels of the organisation. The approach demonstrates that nothing is more important than making sure that we do everything we can to protect the health and safety of our employees, our contractors and to protect the environment.

Contractors and subcontractors are required to support and engage with Zero Harm at the work location and, with any initiatives or programs aimed at improving health, safety, the working environment and EHS performance standards. This may include, for example, participation and attendance at workshops, safety stand-down days, safe start induction, awareness training, briefings, toolbox talks etc.

SE reserves the right to stop work and to suspend, exclude or ban from any SE site, any individual(s) for a Violation of the EHS Plan, SE Zero Harm Framework, customer rules, contractor EHS requirements, site rules and / or local laws and regulations.

The suspension, exclusion or ban will also apply to situations where verbal or written instructions issued by the contractor are determined by SE, to conflict with any of the above.

The suspension, exclusion or ban is valid for a period of time as determined by SE, based on the findings of any investigation including an assessment on the extent of culpability of any individual(s), and actions to be undertaken by the contractor to correct the unwanted behaviour.

3.5. EHS Planning

SE will make available a site / project specific EHS plan which covers the scope of work, hazards, risks, site rules and the arrangements for environment, health, safety, and welfare. All contractors, subcontractors and suppliers are to comply with all EHS requirements and rules identified within the plan.

Contractors are required to develop their own EHS plan, describing how the contractor will plan, manage, and monitor their own scope of work and the work of their subcontractors.

3.6. Risk Management and Assessment

All work activities shall be effectively planned and assessed prior to commencement of work. Contractors are required to familiarise themselves with any hazards in the workplace and provide a risk assessment for their scope of work, their work activities and work location.

The contractor shall ensure that EHS hazards are identified, assessed and controls put in place to manage the hazards and risks of all work activities. Risk assessments shall be fit for purpose, and risk decisions shall be documented and monitored to ensure that they are effectively managed.

The risk assessment shall be submitted to SE for review, evaluation, and acceptance prior to the commencement of the work. SE reserves the right to reject any risk assessment where it is believed that EHS hazards, and risks have not been fully addressed by the contractor. In this case, the contractor will review and update the risk assessment and resubmit it to SE before the commencement of the work.

The contractor will ensure that everyone working on their behalf are fully briefed on the requirements of the risk assessment and that it has been read and understood by the working party.

The contractor is responsible for monitoring the implementation of the risk assessment and any other documentation (*e.g., Method statement, permit to work etc.*) that is required for ensuring compliance with identified risk controls.

Risks associated with temporary and permanent changes to design, operations, processes, assets, plant, and materials shall be assessed, documented, and managed before the change occurs. All changes shall be communicated to and, aligned with SE.

3.7. Permit to Work

The contractor has the responsibility to implement and manage a permit for work when issued as part of a work activity. The contractor shall conform with all requirements and controls identified on the permit.

Where SE is responsible for the work site / location (*i.e., in the role of main / principal contractor*) all permits to work shall be issued and controlled by competent SE representative.

In very exceptional cases, the contractor may be required to use their own permit system, but this shall be reviewed and accepted by SE as suitable for use, prior to the commencement of any work activities. The review shall also include the assessment of competence of those issuing, receiving, changing, and cancelling permits.

In all other cases the contractor shall adopt the SE Business Area / Project Entity permit to work for the relevant work activities and confirm the training and competences of those with the responsibilities for receiving permits, supervising working parties and sub-contractors, protective controls, cancelling permits, and closing out work activities.

3.8. Communication

The contractor shall propose and agree the common working language for the execution of their scope of work. The need to provide EHS information (*e.g., Safety inductions, setting to work or pre-task briefs, toolbox talks, emergency information etc.*) in required languages shall be addressed and the contractor shall consider the use of visual media and communications when literacy and/or multiple languages are an issue.

The contractor shall ensure efficient and effective EHS communication, participation and consultation with all personnel involved in the work. This includes, but is not limited to, mobilization, toolbox talk, pre-task briefings prior to the start of the work or work activities, regular worksite EHS meetings with all parties (*including subcontractors, suppliers, SE and third parties*), newsletters, etc. In addition, the contractor shall actively participate in relevant SE EHS meetings.

Where the contractor proposes to use interpreters, they shall be competent professionals, fluent in the language required. Workers with language barriers shall be supervised by a competent supervisor who is able to communicate effectively with them in their own language. The ratio of supervisors to vulnerable workers on site will be determined by risk assessment by the contractor, with final agreement on the proposals by SE.

3.9. Setting to work / Mobilization

The contractor shall, prior to commencement of the work, inform all in scope personnel of the EHS regulations, rules, requirements, instructions, information, which are or could be related to the work activities and the work location.

Such regulations, rules, requirements, instructions, and information may be subject to review by SE. The contractor shall communicate these in such a manner that all personnel can easily understand. The contractor shall ensure that any new personnel are informed in the same manner.

Before commencement of work activities, the contractor shall ensure all personnel receive a specific induction that details, SE expectations in work performance, hazards and risks associated with the work activities and work location, the requirements for risk assessment etc. The contractor shall also ensure that, any new personnel are informed in the same manner.

A supervisor will be made and held responsible for the setting to work process and will ensure that the working party(s) are working in line with agreed risk controls.

3.10. Safe Start

Where a contractor (*Including subcontractors*) has been engaged by SE to conduct high risk activities as part of their scope of work, as defined by the Zero Harm Framework - Safety Essentials. All associated workers shall attend the SE "Safe Start" training.

Safe start is a work location induction where SE and its contractors meet face to face, prior to the start of any high-risk work activities. The objective is to communicate and align the EHS requirements, Zero Harm Framework, EHS plans, hazards, risks, expectations for the project and, to provide contractors with the opportunity to confirm and ask questions.

3.11. Emergency Preparedness

Each site / location shall have an emergency plan in place which is displayed and updated on a regular basis. Emergency procedures, contact details and site / location requirements shall be clearly visible at key locations across the site / location and shall be tested regularly.

For the contractor's scope of work, work activities and work location, the contractor shall identify and agree with SE, suitable emergency response and management arrangements. This shall include the requirements for the contractor to:

- Be familiar with the emergency plan, procedures, evacuation routes and assembly points.
- Be aware of emergency contact details for the site / location.
- Respond to any alarms and taking appropriate action.
- Ensure that any emergency training requirements are implemented. (*e.g., Spill kits, first aid, fire extinguishers etc*)
- Engage in and contribute to emergency response tests and drills.
- Ensure any subcontractors engaged by the contractor are made fully aware of the requirements.

Where the contractor is responsible for the provision of first aid and for conducting other emergency response and management tasks, the contractor shall ensure that relevant personnel are assigned, trained, and qualified to perform these tasks.

The contractor will also make SE aware of any specific first aid requirements regarding the work being undertaken, *e.g. specific response to contact with a specific substance*.

3.12. Competency

Contractors and subcontractors shall be competent to conduct the scope of work / work activities that are assigned to them and, have sufficient training, knowledge, and experience to conduct themselves safely, lawfully, and responsibly. This includes specific training on risk assessment, identification of hazards and risks at the work location and for the work activities.

The contractor shall provide information detailing how competency and training is managed in their organisation together with training records, certifications, qualifications of their personnel who are to be assigned to conduct work activities at the work location. This shall include the training and competencies of all contractors' supervisory personnel, including subcontractors, temporary workers or suppliers that are engaged by the contractor.

Contractor competency information and training records shall be provided to demonstrate an adequate level of technical and EHS related training by a recognised training institution or body. These shall be

made available to SE for review and inspection prior to the commencement of any work activities at the location.

The contractor shall ensure that all contractor and sub-contractor personnel engaged in the work are fit for work and are able to perform the work safely. If specific location and/ or work-related trainings or health tests are needed, they will be identified in the location specific EHS plan.

3.13. EHS Awareness

The contractor shall be responsible for maintaining and enhancing EHS awareness among its own and sub-contractor personnel, including but not limited to, arranging safety inductions, toolbox meetings, regular EHS meetings and emergency exercises and drills. Copies of minutes of contractor safety / EHS awareness meetings shall be recorded and submitted to SE as requested.

Whenever contractors are requested to participate in SE toolbox meetings, emergency response drills, safety inductions, regular EHS meetings etc. it is expected that the contractor will take part.

Contractor and sub-contractor personnel will be familiar with the SE Zero Harm Framework, its principles, behaviors, safety essentials and building blocks.

3.14. Inspections and Audits

The contractor and the contractor's personnel (*including subcontractors*) shall participate in audit and inspection programs for the site / location and scope of work. This also includes audit and inspection requirements that are identified by SE, main / principal contractor, or the customer.

Contractors shall schedule formal inspections of the work area on a regular basis throughout the life of the contract. The frequency of inspection will be dependent on the type and scope of work being conducted by the contractor and the level of risk, associated with the work activities and work location.

Formal audits shall be conducted by the contractor on a regular basis by a competent resource from within the contractor's organisation. A schedule of audits shall be provided to SE representatives for the contractor's scope of work, location, and work activities.

Results from any related audit or inspection shall be provided to SE representatives for review along with any resulting actions to close any nonconformity.

SE reserve the right to conduct its own EHS inspections and audits at the worksite to ensure the contractor's compliance (*including subcontractors*) with EHS requirements throughout the scope of the Contract.

SE personnel reserve the right to have access to and inspect any work area and further to request any improvements they consider necessary to comply with EHS requirements.

3.15. Contractor Supervision

A supervisor is any person who directs, oversees, and monitors work activities, including safety responsibilities for workers and/or working parties.

The contractor shall ensure that there is sufficient supervision of their workers and work activities for their scope of work.

All supervisors engaged and deployed by the contractor, their subcontractors and suppliers shall be fully qualified, competent, and experienced in the scope of work and work activities, to the satisfaction of SE.

SE reserves the right to remove contractor's supervisors from the site if their EHS competency or performance is not satisfactory.

3.16. Personal Protective Equipment

The contractor shall ensure that PPE identified by risk assessment and by site rules shall be worn at all times and is fit for purpose in line with applicable site safety rules, regulation, policies, and any requirements identified in the EHS Plan.

Any additional PPE required for the protection of an individual from hazards and risk, when conducting a work activity, shall be identified, and detailed in a task specific risk assessment. The contractor is responsible for making sure that all personnel working for them, including any subcontractors that are engaged by the contractor, has suitable personal protective equipment (PPE) for the activity being conducted.

PPE shall be in good condition and a good fit; personnel shall be aware and trained on the correct use PPE and if respiratory protective equipment (RPE) is necessary, face fit testing will need to be conducted prior to selection and use of RPE.

The contractor shall ensure that PPE is properly maintained and stored to prevent damage/degradation and the disposal of contaminated/used PPE and work clothing shall be effectively managed by the contractor.

3.17. Work Equipment and tools

Work equipment (e.g., Hand, power tools, industrial vehicles, access equipment etc) is commonly used at all work locations / sites for various and multiple work activities. Work equipment shall be well maintained and workers who use work equipment shall be trained and competent.

The contractor shall ensure:

- A risk assessment is conducted for the work activities including the use of work equipment.
- Work equipment is kept in good condition.
- Work equipment is regularly inspected, registered, and maintained.
- The right tool for the job is used and within its intended purpose.
- Work equipment is used and operated in line with the manufacturer's recommendations and guidance.
- Work equipment is checked for damage prior to use. Damaged work equipment is removed from use.
- Personal protective equipment is risk assessed, provided, and worn.

3.18. Incident Reporting and Investigation Requirements

It is the responsibility of the contractor to immediately contact and inform the site / location manager of any EHS accidents, incidents, near misses, unsafe acts, and conditions. The contractor shall ensure:

- Incidents are reported on the SE online EHS Reporting Tool, as applicable.
- All events (*including their subcontractors*) are investigated.
- All actions resulting from the investigation are implemented.
- Lessons learned are communicated and actioned.
- Participation in all emergency response drills and activities.

The contractor shall provide monthly working-hours in line with any other EHS reporting requirements as identified by SE.

a) Written notification of incident:

A formal written notification to include the incident classification (*environmental, lost time, restricted work, medical treatment, first aid, etc.*) describing the incident shall be provided to SE as soon as possible, but no later than 24 hours after the incident. A verbal notification required as soon as practical after any incident occurring to ensure SE can provide any necessary Emergency Response or Emergency Management support.

b) Investigation of incident:

SE may request information in relation to an incident to seek assurance that incidents are investigated and that appropriate measures have been taken to mitigate against reoccurrence.

Where requested, a formal incident report shall be provided to SE describing the incident, identifying causal factors and root causes and the corrective / preventive actions that have or will be taken. The report shall be provided to SE no later than seven (7) days from the incident unless there is a documented extension agreed by SE. The status of the corrective & preventive actions shall be presented to SE weekly until all items are closed. In addition, the relevant safe systems of work shall be reviewed for effectiveness as part any investigation process.

The responsibility for an investigation by a contractor should be managed by an "Investigation Lead". The Investigation Lead shall be technically competent to undertake the investigation or have the appropriate technically competent resources made available to them. The Investigation Lead is responsible for undertaking root cause analysis and identifying corrective actions required associated with each incident.

- c) Notwithstanding the above, SE reserves the right to initiate its own investigation in the event it disagrees with the findings of any contractor led investigation. The contractor will be expected to collaborate fully with SE on any SE led investigation including providing SE with any relevant information requested as part of any investigation. The contractor shall actively train and encourage personnel to intervene on unsafe behaviors and situations and report on deviations from procedures, safe systems of work and expectations. Note that personnel include subcontractor personnel.

3.19. Eye on Safety

The contractor and the contractor's personnel (*including subcontractors*) shall participate in Eye on Safety reviews where required by SE. The Eye on Safety review will consider the outcomes of any

accidents, incidents and near misses that may have occurred at the work location. The intent of the review is to discuss the incident in more detail to be able to understand how the incident occurred, how it was investigated and to identify any lessons learned.

3.20. House Keeping

The contractor shall ensure that housekeeping is maintained continuously throughout the duration of the work with a focus on ensuring the safety of personnel, particularly in relation to slipping, tripping, fire, and environmental hazards.

Due regard shall be paid to proper disposal of all types of wastes especially hazardous wastes in line with agreed SE waste streams, tidiness, and clear access ways and emergency exits.

Access and egress of all exits, safety equipment, and work areas, shall always be kept clear of obstructions. Special attention shall be given to among others, maintaining clear walkways, removal of slippery and tripping hazards, securing, or removing of loose materials at height, and proper storage of materials.

3.21. Environmental Management

The contractor shall actively participate in the avoidance of negative environmental impacts. Increasing environmental and energy performance in accordance with the environmental and energy goals communicated and agreed with SE. The contractor shall execute the works in a manner that makes efficient use of resources and energy. Avoidable energy consumption shall be prevented.

The contractor shall report to SE any observations of unanticipated environmental impacts or circumstances that result in energy loss, such as leaks or defects. Recommendations for improving energy efficiency or for avoiding environmental impacts shall be communicated in the same manner.

Prior to executing the works, the contractor shall propose and agree with SE the measures to be applied to avoid harm to the environment by minimizing climate impact, preventing environmental pollutants, energy consumption, health and environmentally hazardous chemicals, waste, nuisance (e.g. *noise, vibration*), resources, packing materials (e.g. by using used or recycled materials). These measures shall be reflected within the contractors EHS documentation.

The contractor shall establish and implement environmental management arrangements that detail the practices, procedures, and control measures for effective management of environmental aspects and impacts, as required by the relevant authorities.

Environmental aspects include, but not limited to:

- a) Use of resources, e.g. chemicals, water, energy, fuel, etc.
- b) Air emissions
- c) Wastewater / stormwater discharges
- d) Public nuisance, e.g. noise, odour, dust, etc.
- e) Waste generation, segregation, and disposal.

The contractor shall develop waste management arrangements in accordance with any requirements from SE and the relevant authorities. These arrangements shall identify all types of wastes and state their method of segregation, disposal and make this available before the commencement of any work.

These arrangements shall be regularly updated as conditions change. The contractor shall handle, sort, and dispose all types of wastes in conformance with the relevant regulations, procedures, and SE requirements.

The contractor shall ensure spill prevention is practiced and in place, where necessary. E.g. chemicals/fuel is stored in durable containers, secondary containment at the chemical/fuel storage area and during handling of chemicals/fuel, etc. which are labelled properly.

The contractor shall evaluate and follow-up any environmental impact as result of the work executed. The follow-up shall include environmental monitoring where required or as agreed with SE. The contractor shall use results systematically to minimise environmental impact from execution of the work.

3.22 Contractor EHS Performance, Violation of Local Legal or SE EHS Requirements

Prior to commencement of the contracted works, the contractor shall draw up a written action plan focusing on the significant risks to be managed during execution of the works. The identification of significant risks, will be decided by the contractor, but can be based on their direct experience and knowledge or with the support of SE. Nevertheless, the action plan shall be agreed with SE and shall clearly identify the risk areas including mitigation measures to be undertaken and a proposal on how performance in managing these risks will be measured.

In the event of any violation of SE EHS Requirements (including any identified locally by SE), the contractor will be required to propose and agree with SE a written action plan which includes mitigation of root causes.

If the contractor fails without due justification to undertake the corrective actions within any deadline as agreed with SE as part of any action plan, SE reserves the right to implement the necessary corrective measures on its own means at a cost to be borne by the contractor. This may include for example targeted training, safety campaigns and or increased supervision and monitoring of the contractor undertaken by SE or a third party of SE's choice, for a period to be agreed with the contractor but not less than 3 weeks.

In the event of any breach of statutory duties relating to any local legal and regulatory requirements then the affected work(s) will be stopped by SE in accordance with sections 3.3 / 3.4 until such time the contractor can put in place measures as agreed with SE to rectify the cause(s) of the breach. Work will not be allowed to recommence until authorized by SE.

Where EHS performance of the contractor is judged by SE, to fall below the standards required to ensure safety of personnel or control of risks, either through analysis of incident reporting or inspections conducted by SE. Then SE shall agree a written action plan with the contractor in line with the above. If the contractor consistently fails to meet expected EHS performance as specified in EHS plan or is not able to rectify and correct violations to the satisfaction of SE, then SE reserves the right to initiate requalification of the contractor. This could result in the contractor not being awarded any further work with SE.

Document Index

References

No.	Name/Title
000050	EHS Principles and Core Responsibilities
000051	EHS Reporting, Investigation and Root cause
000118	Zero Harm Framework

Change History

Version	Date	Remarks
	Publication Date +2 years	Next Review
1	According to SEPH ("Publication Date")	First Publication as Instruction.

Organizational Terms

For abbreviations and definitions please refer to Siemens Energy’s [organizational terms](#).